

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sally Lynn Edmonds	Team: Squad #07	CCRB Case #: 201703838	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Monday, 05/15/2017 10:12 AM	Location of Incident: 7th Precinct stationhouse; 96 Suffolk Street	18 Mo. SOL 11/15/2018	Precinct: 07
Date/Time CV Reported Mon, 05/15/2017 12:33 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/15/2017 12:33 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Robert Rodriguez	04745	926013	TAXI UT
2. An officer			CW T TF
3. POM Mark Melendez	05285	924189	CW T TF
4. POM Arnaldo Troncoso	09813	927609	CW T TF
5. POM Frank Bonilla	03938	923747	CW T TF

Officer(s)	Allegation	Investigator Recommendation
A . POM Frank Bonilla	Discourtesy: At 96 Suffolk Street in Manhattan, Police Officer Frank Bonilla spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . An officer	Discourtesy: In the vicinity of the 7th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)	B . Officer(s) Unidentified
C . SGT Robert Rodriguez	Off. Language: In the vicinity of the 7th Precinct stationhouse, Sergeant Robert Rodriguez made remarks to § 87(2)(b) based upon his perceived sexual orientation.	C . Unsubstantiated
D . SGT Robert Rodriguez	Discourtesy: In the vicinity of the 7th Precinct stationhouse, Sergeant Robert Rodriguez spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . SGT Robert Rodriguez	Force: In the vicinity of the 7th Precinct stationhouse, Sergeant Robert Rodriguez used physical force against § 87(2)(b)	E . Exonerated
F . POM Frank Bonilla	Force: In the vicinity of the 7th Precinct stationhouse, Police Officer Frank Bonilla used physical force against § 87(2)(b)	F . Exonerated
G . POM Mark Melendez	Force: In the vicinity of the 7th Precinct stationhouse, Police Officer Mark Melendez used physical force against § 87(2)(b)	G . Exonerated
H . POM Arnaldo Troncoso	Force: In the vicinity of the 7th precinct stationhouse, Police Officer Arnaldo Troncoso used physical force against § 87(2)(b)	H . Exonerated
I . SGT Robert Rodriguez	Abuse: In the vicinity of the 7th Precinct stationhouse, Sergeant Robert Rodriguez interfered with § 87(2)(b)'s use of a recording device.	I . Exonerated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on May 15, 2017, via phone (Board Review 01). He filed a duplicate complaint with the Internal Affairs Bureau (IAB) on May 15, 2017 (Board Review 14).

On May 15, 2017, at approximately 10:12 a.m., § 87(2)(b) urinated on the sidewalk in front of 96 Suffolk Street in Manhattan. Police Officer Frank Bonilla of the Citywide Traffic Task Force stopped § 87(2)(b) and asked for his identification, which § 87(2)(b) refused to provide. PO Bonilla then allegedly said, “What the fuck, you fucking asshole, who do you think you are? (**Allegation A**). Sergeant Robert Rodriguez of Taxi UT, as well as Police Officer Mark Melendez and Police Officer Arnold Troncoso, both of Citywide Traffic Task Force, also approached § 87(2)(b). Officers asked for § 87(2)(b)'s ID several more times, and he continued to refuse to provide it. PO Bonilla handcuffed § 87(2)(b) and transported him to the 7th Precinct stationhouse along with PO Melendez and PO Troncoso. While in the police van, an officer allegedly told § 87(2)(b) to “Shut the fuck up!” and that it was “too fucking late” for him to get out of the situation (**Allegation B**). At the stationhouse, § 87(2)(b) was searched and placed in a cell. While he was in the cell, Sgt. Rodriguez approached him and stated “You’re a fucking faggot and you like to take it up your ass,” and “you’re a piece of shit, fuck you” (**Allegations C and D**). Half an hour later, the officers opened the cell door and released § 87(2)(b) with a Desk Appearance Ticket (DAT). They asked § 87(2)(b) to leave the stationhouse and he refused. Sgt. Rodriguez, PO Bonilla and either PO Melendez or PO Troncoso then allegedly pushed § 87(2)(b) as they escorted him out of the stationhouse (**Allegations E, F, G and H**). § 87(2)(b) recorded the officers with the camera on his phone so that he could identify them later. When he put his phone in front of Sgt. Rodriguez’s face, Sgt. Rodriguez allegedly grabbed § 87(2)(b)'s phone and almost threw it on the floor, before giving it back to him (**Allegation I**). § 87(2)(b) then left the stationhouse.

§ 87(2)(b) provided three cell phone videos, one of which was relevant to the investigation and is embedded below. The video shows Sgt. Rodriguez, PO Troncoso and PO Bonilla escorting § 87(2)(b) from the precinct stationhouse. For a summary of the video, see Board Review 06.



Cell Phone Video provided by § 87(2)(b).mp4

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- On June 28, 2017, the New York City Comptroller’s Office notified the CCRB that § 87(2)(b) had not filed a Notice of Claim (Board Review 03).

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 04).
- Sgt. Rodriguez has been a member of the NYPD for 17 years. He has been the subject of 17 allegations, stemming from nine complaints, none of which were substantiated. § 87(2)(g)

- PO Bonilla has been a member of the NYPD for 18 years and this is the first complaint against him.
- PO Melendez has been a member of the NYPD for 18 years. He has been the subject of two prior allegations stemming from one complaint, none of which were substantiated § 87(2)(g)
- PO Troncoso has been a member of the NYPD for 16 years and this is the first complaint against him.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) obtained Sgt. Rodriguez's name from his badge number and accurately described him. Additionally, § 87(2)(b) provided video evidence and pointed out Sgt. Rodriguez, PO Bonilla and PO Troncoso in those recordings (Board Review 08).

However, § 87(2)(b) was not able to say which officer cursed at him in the van, because he had his head down. PO Bonilla, PO Troncoso and PO Melendez were identified as the only officers to drive in the van with § 87(2)(b). § 87(2)(b) believed that the officer who cursed at him was most like PO Bonilla, whom he believed to be sitting behind him in the van. Yet all three of the officers believed PO Bonilla to be seated in the front. Furthermore, all officers denied speaking discourteously to § 87(2)(b) or hearing another officer do so. § 87(2)(g)

Additionally, § 87(2)(b) recalled that Sgt. Rodriguez, PO Bonilla, and either PO Melendez or PO Troncoso used physical force to remove him from the stationhouse. However, Sgt. Rodriguez and PO Bonilla both recalled that all four officers had escorted § 87(2)(b) from the stationhouse, and PO Melendez stated that he personally guided § 87(2)(b) out by putting his hand on his upper arm. PO Troncoso said that he stood 12-15 feet back while § 87(2)(b) was being escorted out. § 87(2)(g) the video footage, which showed him to be closer to § 87(2)(b) than he initially stated. § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A – Discourtesy: At 96 Suffolk Street in Manhattan, Police Officer Frank Bonilla spoke discourteously to § 87(2)(b)

§ 87(2)(b) filed this complaint with the CCRB as well as IAB on May 15, 2017 (Board Review 01; 14). He provided a sworn statement on May 17, 2017 (Board Review 07). On the same date, § 87(2)(b) also provided a written account of the incident (Board Review 15).

During his sworn statement, § 87(2)(b) stated that he urinated in the doorway of a residential building. When he finished urinating and turned around, PO Bonilla was standing in front of him. § 87(2)(b) tried to walk past him, but PO Bonilla grabbed his wrist and asked him for his ID. § 87(2)(b) refused to provide his ID. PO Bonilla asked him for his ID a total of two to three times and § 87(2)(b) continued refusing. PO Bonilla then said, “What the fuck, you fucking asshole. Who do you think you are?” About 30 seconds after PO Bonilla grabbed him, Sgt. Rodriguez, PO Melendez and PO Troncoso approached them as well. § 87(2)(b) was not able to say whether they heard PO Bonilla curse at him. § 87(2)(b) did not allege this discourtesy allegation in his phone statement or statement to IAB (Board Review 01; 14). In his written statement, § 87(2)(b) alleged that an officer cursed at him, though he did not specify the language used (Board Review 15).

PO Bonilla stated that he observed § 87(2)(b) urinating in front of 98 Suffolk Street in Manhattan (Board Review 09). He got the attention of Sgt. Rodriguez and PO Melendez, who were standing about five feet away, and they approached § 87(2)(b) together. PO Bonilla waited for § 87(2)(b) to finish urinating. § 87(2)(b) then turned around and attempted to walk past PO Bonilla. PO Bonilla asked § 87(2)(b) for identification. § 87(2)(b) refused to provide identification and stated “You can’t stop me” and “I don’t have to give you my ID.” PO Bonilla and Sgt. Rodriguez both asked § 87(2)(b) for his ID twice. § 87(2)(b) cursed at the officers in Spanish and used certain legal terminology to show that he was aware of the law. PO Bonilla did not make the alleged discourteous statements or use any profanity when speaking to § 87(2)(b).

Sgt. Rodriguez, PO Melendez and PO Troncoso also denied hearing PO Bonilla say the alleged discourteous statements or use any profanity toward § 87(2)(b) (Board Review 10; 11; 12). § 87(2)(g)

§ 87(2)(b) Sgt. Rodriguez stating that he, PO Melendez and PO Troncoso approached § 87(2)(b) after PO Bonilla had already asked him for his ID, PO Melendez stating that they all approached him at the same time, and PO Troncoso stating that PO Bonilla and PO Melendez approached § 87(2)(b) together, closely followed by Sgt. Rodriguez and PO Troncoso. The officers generally described § 87(2)(b)'s behavior as belligerent and uncooperative.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B – Discourtesy: In the vicinity of the 7th Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that when PO Bonilla, PO Melendez and PO Troncoso were transporting him to the 7th Precinct stationhouse in the van, one of the officers told him to “Shut the fuck up!” when § 87(2)(b) stated that he worked for the MTA, and that it was now “too fucking late” for him because he should have provided his ID (Board Review 07).

PO Bonilla, PO Melendez and PO Troncoso each denied making the alleged discourteous statements or hearing another officer do so (Board Review 09; 11; 12).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Officer Unidentified**.

Allegation C – Offensive Language: In the vicinity of the 7th Precinct stationhouse, Sergeant Robert Rodriguez made remarks to § 87(2)(b) based upon his perceived sexual orientation.

Allegation D – Discourtesy: In the vicinity of the 7th Precinct stationhouse, Sergeant Robert Rodriguez spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that he was in the cells and had refused to come out when Sgt. Rodriguez approached him and suggested that the only reason § 87(2)(b) wished to stay in the cell was because he was “a fucking faggot and [he] liked to take it up [his] ass” (Board Review 07). He also allegedly told § 87(2)(b) “You’re a piece of shit, fuck you.” Nobody else was in the cells during this time.

Sgt. Rodriguez stated he went to speak with § 87(2)(b) while he was in the cells to let him know that he could be released with a DAT (Board Review 10). § 87(2)(b) did not want to be released and said “fuck this, I’m going to stay.” Sgt. Rodriguez did not make any statements regarding § 87(2)(b)’s sexual orientation. He did not use the alleged offensive language or make the alleged discourteous statement. § 87(2)(b) called Sgt. Rodriguez a “faggot” several times and asked Sgt. Rodriguez about his sexual orientation and his nationality. Sgt. Rodriguez did not respond to these comments. During this conversation between § 87(2)(b) and Sgt. Rodriguez, PO Bonilla, PO Troncoso and PO Melendez were a few feet away at the computers.

PO Bonilla, PO Melendez and PO Troncoso all stated that they did not recall Sgt. Rodriguez going to the cell area (Board Review 01; 11; 12). They did not recall Sgt. Rodriguez using the alleged offensive language or making the alleged discourteous statements. PO Melendez and PO Troncoso stated that they could not hear any conversation that occurred in the cell area from where they were standing.

The prisoner holding pen roster and command log confirmed that there were no other prisoners in the cells at that time (Board Review 16; 17).

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **Unsubstantiated**.

Allegation E- Force: In the vicinity of the 7th Precinct stationhouse, Sergeant Robert Rodriguez used physical force against § 87(2)(b)

Allegation F – Force: In the vicinity of the 7th Precinct stationhouse, Police Officer Frank Bonilla used physical force against § 87(2)(b)

Allegation G – Force: In the vicinity of the 7th Precinct stationhouse, Police Officer Mark Melendez used physical force against § 87(2)(b)

Allegation H – Force: In the vicinity of the 7th Precinct stationhouse, Police Officer Arnaldo Troncoso used physical force against § 87(2)(b)

§ 87(2)(b) stated that upon his release from the cell, officers asked him to leave the stationhouse, and § 87(2)(b) refused to leave. Officers asked him to leave about four or five times before Sgt. Rodriguez, PO Bonilla, PO Troncoso and PO Melendez forced him out by pushing and pulling him (Board Review 07). § 87(2)(b) did not complain of any pain or injuries as a result of this action, and he recognized that the purpose of it was to remove him from the stationhouse.

Sgt. Rodriguez stated that all four of the officers walked § 87(2)(b) out of the stationhouse, but that they did not use any physical force to get him out of the stationhouse (Board Review 10). Sgt. Rodriguez stated that he was walking an arm's distance behind § 87(2)(b).

PO Bonilla stated that officers asked § 87(2)(b) to leave the stationhouse multiple times (Board Review 09). All four of the officers escorted § 87(2)(b) out of the precinct by standing behind him and telling him he had to get out. PO Bonilla did not personally make physical contact with § 87(2)(b) when getting him to leave the stationhouse, though he did not recall if another officer had done so.

PO Melendez stated the officers told § 87(2)(b) to leave the stationhouse multiple times but § 87(2)(b) refused to do so and they then escorted him out (Board Review 11). PO Melendez did not remember specifically which officers escorted him out, but it was him and one other officer who each walked on one side of § 87(2)(b) and guided him out by putting their hands on his upper arms.

PO Troncoso stated that the officers escorted § 87(2)(b) out of the stationhouse by blocking his path with their body so that they had to move forward (Board Review 12). PO Troncoso was standing about 12 to 15 feet behind the other officers when they were escorting § 87(2)(b) out of the stationhouse. No force was used in escorting § 87(2)(b) out of the precinct and an officer did not push or pull § 87(2)(b) when escorting him out of the precinct.

A seven-second cell phone video of § 87(2)(b) walking out of the precinct shows Sgt. Rodriguez walking behind § 87(2)(b) and to his left, approximately two feet away from him (Board Review 05; 06). PO Troncoso is immediately to Sgt. Rodriguez's right, and PO Bonilla is behind § 87(2)(b) and to his left, about five feet back. The officers in the video are not seen making physical contact with § 87(2)(b).

§ 87(2)(b) informed an IAB investigator that his cell phone video showed the officers pushing him out of the stationhouse, despite the fact that no physical contact is made in the video (Board Review 14).

A person who remains upon premises open to the public does so legally, unless he defies a lawful order not to enter or remain, personally communicated to him by an authorized person, NY Penal Law, Section 140.05 (Board Review 13).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations E, F, G and H** be closed as **Exonerated**.

Allegation I: Abuse of Authority – In the vicinity of the 7th Precinct stationhouse, Sergeant Robert Rodriguez interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(b) stated that as the officers were escorting him out of the stationhouse, he put his phone in Sgt. Rodriguez's face in order to identify him, for the purposes of making a complaint (Board Review 07). Sgt. Rodriguez grabbed his phone, said "Get that phone out of my face," and made as gesture as if he was about to smash the phone on the ground before he appeared to think better of it and returned the phone to § 87(2)(b).

Sgt. Rodriguez stated that as he was escorting § 87(2)(b) out of the precinct, walking an arm's length behind him, § 87(2)(b) abruptly turned around and extended his arm, leading Sgt. Rodriguez to believe that § 87(2)(b) was going to strike him with whatever he had in his hand (Board Review 10). Sgt. Rodriguez instinctively pushed § 87(2)(b)'s hand out of his face. Immediately afterward, Sgt. Rodriguez realized that the object § 87(2)(b) was holding was a phone. He did not recall taking § 87(2)(b)'s phone away from him or saying "Get that phone out of my face." He did not try to interfere with § 87(2)(b) recording him.

PO Bonilla and PO Melendez recalled § 87(2)(b) using his cell phone to record the officers, while PO Troncoso did not recall if § 87(2)(b) recorded the officers (Board Review 09; 11; 12). None of the officers recalled Sgt. Rodriguez ever slapping away § 87(2)(b)'s phone, taking his phone, or interfering with his recording (Board Review 09; 11; 12).

Cell phone video provided by § 87(2)(b) shows Sgt. Rodriguez looking into the camera (Board Review 05; 06). During the seven-second video, there is no evidence that he or another officer attempted to interfere with § 87(2)(b)'s recording.

§ 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **Exonerated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date